

On behalf of the Claimant  
Witness: George Bertram Dobbs (GBD)  
No. of witness statement: 1  
Exhibit: GBD1  
Date: 10 March 2026

Claim No K7QZ4318

**IN THE COUNTY COURT AT SHEFFIELD**  
**B E T W E E N**

**MR GEORGE BERTRAM DOBBS**

**Claimant**

**And**

**MR ADRIAN REEVES**

**Defendant**

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**WITNESS STATEMENT OF GEORGE DOBBS**

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I, George Bertram Dobbs, of 12 Linden Close, Sheffield, S11 8AP, retired schoolteacher, state as follows:

1. I am the Claimant in these proceedings ("the Claim"). I make this statement from my own personal knowledge except where I say otherwise, in which case I identify the source of my information or belief.
2. I make this statement in support of my claim against my next-door neighbour for the cost of remedial works to my boundary wall, garden path and patio, and for an injunction requiring the removal of, or the installation of a root barrier in respect of, the oak tree growing on the Defendant's land.
3. I have prepared this statement myself as a litigant in person, having taken general information from the Citizens Advice Bureau and from the leaflets available at the County Court counter.

**Background**

4. I purchased 12 Linden Close in May 1988 and I have lived there continuously ever since. The Defendant moved into the next-door property at 14 Linden Close in or about 2014.
5. The two properties were built in or around 1962 on land that I am told is on the Sheffield clay belt. The boundary between us runs along a low brick wall which is approximately 6 metres in length. My garden path runs parallel to that wall and my paved patio sits at the rear of the wall.
6. On the Defendant's side of the boundary there grows a mature English oak tree. To my eye it is of considerable age, certainly older than the houses; it stands approximately 14 metres tall

and its base is approximately 3 metres from the shared boundary wall.

### **The damage**

7. From the summer of 2022 I began to notice cracking in the boundary wall, lifting of patio slabs and lifting and cracking of the garden path. The damage has progressively got worse over the intervening period.

8. I have taken photographs over time, in August 2022, October 2022, March 2023, August 2024 and January 2026. Copies of those photographs are produced together as exhibit GBD1.

9. I formed the view, on looking at the damage, that it is caused by roots from the Defendant's oak tree. My reasons are that the cracking is most pronounced at the corner of the garden nearest the tree and because, when I lifted two of the patio slabs in January 2026, I found what appeared to me to be substantial roots running underneath the slabs. A photograph of those roots is at exhibit GBD1.

### **Correspondence with the Defendant**

10. I first raised the encroachment with the Defendant face-to-face at his garden gate in September 2022. I raised it again in March 2023, August 2024 and in writing on 12 October 2024. The Defendant has on each occasion refused to take any remedial steps or to allow access for me to do so.

### **Cost of the remedial works**

11. On 17 August 2025 Mr Tim Webb of Trentham Builders Ltd attended the property at my request. He inspected the wall, path and patio and quoted £4,200 inclusive of VAT to put the damage right. A copy of the quote is at exhibit GBD1. Mr Webb also sent me a short email on 19 August 2025 commenting on the likely cause of the damage; that email is also exhibited at GBD1.

### **Conclusion**

12. I respectfully ask the court to:

- a) award me the sum of £4,200, being the cost of the remedial works quoted by Trentham Builders Ltd; and
- b) make an injunction requiring the Defendant either to remove the oak tree or to install, at his own expense, a root barrier of sufficient depth to prevent further encroachment.

13. I confirm that I have not engaged any expert in connection with this Claim. I did consider doing so but, on enquiring, was told reports would cost in excess of £1,000 which I considered disproportionate to a claim of £4,200.

### **Statement of Truth**

I believe that the facts stated in this witness statement are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed:

*George Dobbs*

**Name:** George Bertram Dobbs

**Position:** Claimant (litigant in person)

**Date:** 10 March 2026